

SENATE BILL 1840

By Briggs

AN ACT to amend Tennessee Code Annotated, Title 28;
Title 39 and Title 40, relative to statutes of
limitations.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 28-3-104, is amended by adding the following new subdivision (a)(3) and redesignating the current subdivision (a)(3) appropriately:

(3)

(A) Except as provided in subdivision (a)(3)(B), a cause of action for wrongful death shall be commenced within two (2) years after the cause of action accrued.

(B) A cause of action for wrongful death shall be commenced within three (3) years after the cause of action accrued, if:

(i) Criminal charges are brought against any person alleged to have caused or contributed to the death; and

(ii) The conduct, transaction, or occurrence that gives rise to the cause of action for wrongful death is the subject of a criminal prosecution commenced within two (2) years by:

(a) A law enforcement officer;

(b) A district attorney general; or

(c) A grand jury.

SECTION 2. Tennessee Code Annotated, Section 28-3-104(a)(1), is amended by deleting the subdivision and substituting:

(1) Except as provided in subdivisions (a)(2) and (a)(3), the following actions shall be commenced within one (1) year after the cause of action accrued:

(A) Actions for libel, injuries to the person other than wrongful death, false imprisonment, malicious prosecution, or breach of marriage promise;

(B) Civil actions for compensatory or punitive damages, or both, brought under the federal civil rights statutes; and

(C) Actions for statutory penalties.

SECTION 3. This act is known and may be cited as "Quinton's Law."

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it, and applies to causes of action accruing on or after that date.